數據安全承諾

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第一章 承諾說明

APIporter（https://apiporter.com，以下簡稱「本平台」）重視數據安全和個人信息保護，並將其作爲提供人工智能服務的重要基礎。本平台由 CloudBridge Technology AI Limited 營運，該公司於香港註冊成立。

本平台遵循合法、正當、必要、誠信和安全原則，按照適用法律法規及實際業務情況，持續完善數據安全和個人信息保護制度，並採取與處理目的、數據類型及安全風險相適應的技術和管理措施。

本《數據安全承諾》（以下簡稱"本承諾"）適用於本平台提供的相關產品及服務，是《用戶協議》《隱私政策》等平台規則的補充。涉及個人信息處理的具體規則，以《隱私政策》及依法向用戶作出的專項告知爲準。

第二章 我們的安全承諾

（一）依法處理數據

本平台將按照適用於相關處理活動的法律法規處理和保護用戶數據，包括香港特別行政區法律，以及因用戶所在地、數據接收方所在地或具體處理活動而依法適用的其他數據保護及網絡安全規則。

（二）目的明確和最小必要

本平台僅在提供產品功能、履行合同、保障網絡和數據安全、處理用戶請求或履行法定義務所必需的範圍內收集和處理用戶數據，不會超出已告知的處理目的收集與服務無關的信息。

如處理目的、處理方式或數據種類發生依法需要重新告知或取得同意的變化，本平台將依法履行相應程序。

（三）不出售用戶數據

本平台不會以出售用戶個人信息或業務數據作爲商業模式，也不會未經授權出租、交易用戶數據。

在符合法律規定並滿足必要性要求的情況下，本平台可能因下列事項向第三方提供、共享或傳輸必要數據：

1.已依法取得用戶同意或單獨同意；

2.爲完成用戶主動選擇的第三方模型調用或其他服務功能；

3.爲訂立、履行用戶作爲一方當事人的合同所必需；

4.履行法定義務或法定職責所必需；

5.應有權機關依法提出的要求；

6.應對突發公共衛生事件、或者緊急情況下保護自然人的生命健康和財產安全所必需；

7.法律法規規定的其他情形。

涉及第三方處理的，本平台將依照實際處理關係採取必要的告知、合同約束、安全管理及監督措施。具體接收方、處理目的、數據類型和處理方式，以《隱私政策》、第三方信息清單、模型詳情頁或其他專項告知爲準。

爲實現用戶主動選擇的模型調用，相關請求可能通過本平台依法接入的模型服務提供商、API技術服務商、模型聚合服務商、雲計算或網絡基礎設施服務商完成轉發和處理。根據具體服務鏈路，上述服務商可能在完成請求所必需的範圍內接觸用戶輸入內容、上傳文件、對話上下文、模型參數、請求標識及生成結果。

本平台將根據相關服務商在數據處理活動中的實際角色，依法採取必要的服務商評估、合同約束、權限控制、安全管理及監督措施，並要求其僅在約定或依法允許的範圍內處理相關數據。具體服務鏈路可能因模型、用戶所在地、接口方式、數據接收方所在地及供應關係發生變化，以平台依法公布的第三方信息清單、模型詳情頁、《隱私政策》或其他專項告知爲準。

（四）平台默認不將用戶內容用於自有模型訓練

除法律法規另有規定或依法取得用戶單獨、明確授權外，本平台不會將用戶輸入內容、上傳文件、AI對話記錄或模型生成內容用於訓練本平台自行研發的通用人工智能模型。

如未來推出用戶可選擇參加的數據共享、產品改進或模型優化計劃，本平台將依法說明處理目的、數據類型、處理方式及退出機制，並在需要時取得用戶單獨同意。用戶拒絕參加，不影響其使用不依賴該處理活動的基本服務。

用戶選擇第三方模型時，相關請求數據可能被傳輸給相應模型服務提供商。不同提供商對數據保存、服務改進及模型訓練的政策可能不同，本平台不會在缺乏真實服務條款支持時統一承諾所有第三方模型均實行零數據留存或絕不用於訓練。相關規則以平台針對具體模型依法披露的信息及實際有效的服務安排爲準。

除非使用相關功能確有必要，用戶不應在模型請求中提交身份證件、金融賬戶、賬號密碼、API Key、Access Token、精確位置、醫療健康、生物識別信息、未成年人信息、商業祕密或其他敏感、保密數據。用戶通過 API 或其他方式處理第三方數據時，應確保具有合法處理依據，並採取必要的脫敏、權限控制及安全措施。本條不免除本平台及相關服務商依法應承擔的數據安全和個人信息保護義務。

第三章 數據安全保護措施

本平台根據處理活動、數據類型、系統風險及實際業務情況，採取相應的數據安全保護措施，可能包括:

1.使用HTTPS/TLS 等方式保護數據傳輸;

2.實施身份認證、訪問權限和授權管理;

3.開展安全日誌記錄、審計和風險監測;

4.採取網絡邊界防護、漏洞管理和安全修復措施;

5.根據業務連續性需要實施數據備份及災難恢復;

6.在系統開發和變更過程中落實必要的安全要求;

7.定期或在重大變化發生時開展風險排查與安全評估;

8.法律法規要求或與風險程度相適應的其他措施。

本平台將根據法律法規、技術發展、業務變化及風險狀況持續改進安全保護能力。上述措施不構成對任何安全事件絕對不會發生的保證，但本平台將依法履行合理的安全保障義務。

第四章 數據訪問控制

本平台遵循最小權限和按需授權原則，根據崗位職責、數據敏感程度及業務需要設置數據訪問權限。

僅因履行崗位職責確有必要並獲得相應授權的人員，方可在內部制度和保密義務約束下訪問相關數據。本平台將根據系統和業務實際情況，採取訪問審批、權限複覈、操作留痕和安全審計等措施，對異常訪問行爲進行識別和處置。

對於個人信息、企業數據、認證憑證及其他敏感數據，本平台將根據風險等級採取更嚴格的訪問限制，並及時調整或收回不再需要的權限。

第五章 人員安全與保密管理

本平台建立與自身業務規模、數據處理活動及安全風險相適應的信息安全和保密管理制度。

涉及用戶數據處理的員工及合作人員，應按照崗位職責接受必要的數據安全和個人信息保護培訓，並依據法律規定、勞動關係、合作合同或保密約定承擔相應義務。

未經授權，相關人員不得查詢、複製、下載、傳播或向第三方披露用戶數據。對於違反制度、合同或法律規定的行爲，本平台將根據具體情形採取權限收回、內部處理、追究違約責任、報告主管機關或其他依法可採取的措施。

第六章 企業客戶數據保護

本平台理解企業客戶對商業祕密、研發成果、源代碼、業務數據及客戶信息的保護需求。

對於企業客戶在使用平台過程中提交、上傳或處理的數據，本平台將按照合同約定、適用法律及已告知的服務目的進行處理，並採取與風險相適應的保護措施，包括：

（一）不擅自查看、複製、下載、傳播企業客戶數據或將其用於與服務無關的用途；但爲提供服務、安全保障、故障處理、履行法定義務或經企業客戶授權所必需的除外；

（二）不因提供平台服務而當然取得企業客戶數據、商業祕密、源代碼或其他內容的所有權及知識產權；

（三）除法律法規另有規定、經企業客戶授權或爲履行合同所必需外，不向第三方披露企業客戶數據；

（四）根據業務架構和風險狀況採取合理的邏輯隔離、權限隔離或其他訪問控制措施，降低不同用戶之間的非授權訪問風險；

（五）在發生可能影響企業客戶權益的安全事件時，依法依約採取處置和通知措施。

企業客戶通過平台處理個人信息時，應自行確保具有合法處理依據，並依法履行告知、授權管理及其他義務。平台與企業客戶之間的數據處理角色、責任邊界、保存期限、刪除方式、服務等級及其他特殊要求，可通過企業協議、數據處理協議或訂單另行約定。

企業客戶應妥善管理本單位賬號、API Key、Access Token 等認證憑證，合理配置內部權限，並及時處理離職、崗位變更、憑證泄露及異常調用風險。因平台原因、企業客戶原因或第三方原因造成的事件，由相關責任方依法依約承擔相應責任。

第七章 數據保存、刪除與賬號註銷

本平台將根據處理目的，在實現目的所必需的最短期限內保存用戶數據；法律法規另有保存期限要求，或爲履行合同、處理爭議、保障安全所必需的，按照相應期限和目的處理。具體保存規則以《隱私政策》、產品功能說明或專項約定爲準。

用戶有權依據《隱私政策》及適用法律申請刪除個人信息或註銷平台賬號。本平台將在完成必要的身份覈驗後，依法處理相關請求。

賬號註銷前，用戶應按照《充值服務協議》及頁面流程處理未完成訂單、已付餘額和其他相關權益。註銷行爲本身不當然產生餘額提現權，也不構成平台沒收未使用已付餘額的依據。

賬號註銷後，本平台將依法刪除或匿名化處理相關個人信息。對於依法必須保存的數據，包括交易記錄、財務憑證、安全日誌及其他法定留存信息，本平台將在相應保存期限內繼續保存，並限制在履行法定義務、保障安全、防範風險或解決爭議等合法目的範圍內使用。

如用戶通過產品功能主動刪除 AI 歷史記錄、上傳文件或其他業務數據，本平台將按照功能說明及適用法律處理。因備份輪換、災難恢復、系統技術限制或法定保存義務無法立即從全部副本刪除的，本平台將對相關數據採取限制處理和安全保護措施，並在備份更新、恢復條件具備或保存期限屆滿後依法處理。

第八章 安全事件響應

本平台建立與業務和風險狀況相適應的信息安全事件監測、報告及應急響應機制。

如發生或可能發生數據泄露、篡改、丟失等安全事件，本平台將立即採取補救措施，控制風險、保全必要記錄、開展調查，並儘可能降低事件影響。

符合適用法律規定的通知條件時，本平台將依法及時通知受影響用戶。通知內容可能包括：

（一）事件涉及的數據種類、原因及可能造成的危害；

（二）本平台已採取或擬採取的補救措施；

（三）用戶可以採取的風險防範措施；

（四）本平台的聯繫方式及後續安排。

本平台採取措施能夠有效避免信息泄露、篡改、丟失造成危害的，是否通知個人按照適用法律執行；監管部門認爲可能造成危害的，本平台將按照要求通知。依法需要向有關主管部門報告的，本平台將履行相應報告義務。

因模型服務提供商、API 技術服務商、模型聚合服務商、雲計算或網絡基礎設施服務商自身的違法行爲、違反合同約定、超出授權範圍處理數據、安全措施缺陷或其他超出本平台合理控制範圍的原因發生數據安全事件的，由實際責任方依法承擔相應責任。

本平台將在法律規定及自身職責範圍內採取必要的應急處置、用戶通知、協助調查和風險緩解措施。對於本平台已經履行合理選擇、合同約束、監督管理和安全保障義務，且相關損害並非因本平台故意、重大過失或違反法定義務造成的，本平台在法律允許範圍內按照自身過錯程度和實際因果關係承擔責任。

如本平台因上游服務商的違法行爲、違約行爲或安全事件先行承擔賠償、補救或其他責任，本平台有權依法依約向相關責任方追償。

第九章 跨境數據保護

本平台將根據實際模型、調用方式、數據類型、用戶所在地、數據接收方所在地及適用法律，依法處理跨境數據傳輸。使用境外模型或境外服務商，不當然表示所有數據均會跨境傳輸；實際處理以具體服務鏈路及平台依法披露的信息爲準。

如特定模型、功能或服務鏈路涉及跨境傳輸個人信息或其他受保護數據，本平台將在實施前依法履行必要的告知、同意、評估、合同安排、安全措施或其他合規程序，並通過《隱私政策》、第三方信息清單、模型詳情頁或專項告知提供必要信息。

涉及第三方模型服務提供商、API 技術服務商、模型聚合服務商、雲計算或網絡基礎設施服務商的數據處理，本平台將根據實際合作關係履行必要的選擇、合同約束、告知、安全管理及監督義務。第三方作爲獨立處理者或數據控制者時，其處理還可能適用依法向用戶披露的第三方規則，但不因此免除本平台自身依法應承擔的責任。

第十章 持續改進、監督與聯繫

數據安全是一項持續性工作。本平台將根據法律法規變化、監管要求、技術發展、業務需求及安全風險，持續完善信息安全管理制度和保護措施。

本平台歡迎用戶、合作伙伴及社會公衆對數據安全工作提出意見和建議。對於收到的數據安全問題或投訴，本平台將通過公佈的客服、隱私聯繫渠道或其他適當方式受理，並根據問題性質進行覈查和處理。

具體聯繫渠道以《隱私政策》或平台公佈的最新信息爲準。正式發佈前，平台應確保用戶可以通過清晰、有效的渠道提出數據安全和個人信息保護相關請求。

第十一章 附則

如本承諾與適用法律法規存在衝突，以適用法律法規爲準；如與《隱私政策》就個人信息處理的具體事項存在不一致，以依法有效且針對該事項作出明確規定的專項告知或《隱私政策》爲準。本承諾任何條款被認定爲無效、被撤銷或不可執行的，不影響其他條款的效力。

本平台可根據法律法規、監管要求、業務發展、技術變化或安全風險對本承諾進行修訂。涉及用戶權益重大變化的，本平台將依法通過官方網站、站內通知、電子郵件或其他合理方式通知，並給予用戶合理的知悉機會。更新內容的生效時間以公告或通知載明的日期爲準；法律法規另有規定的，從其規定。

本承諾的訂立、生效、履行、解釋及爭議解決，適用香港特別行政區法律。因本承諾引起或與本承諾有關的任何爭議，雙方應先友好協商；協商不成的，任何一方可向香港特別行政區有管轄權的法院提起訴訟。

CloudBridge Technology AI Limited

英文參考譯文/ English Reference Translation

以下英文內容僅供參考。如中英文內容存在差異，以繁體中文版本為準。
The English text below is provided for reference only. In the event of any discrepancy, the Traditional Chinese version shall prevail.

Data Security Commitment

Version: V1.0
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Chapter 1 Statement of Commitment

APIporter (https://apiporter.com, hereinafter referred to as the "Platform") attaches great importance to data security and personal information protection and regards them as an important foundation for providing artificial intelligence services. The Platform is operated by CloudBridge Technology AI Limited, a company incorporated in Hong Kong.

The Platform follows the principles of lawfulness, fairness, necessity, good faith, and security. In accordance with applicable laws and regulations and its actual business circumstances, the Platform continuously improves its data security and personal information protection systems and adopts technical and organizational measures appropriate to the purposes of processing, types of data, and security risks.

This Data Security Commitment (hereinafter referred to as this "Commitment") applies to the relevant products and services provided by the Platform and supplements the User Agreement, Privacy Policy, and other Platform rules. Specific rules concerning the processing of personal information shall be governed by the Privacy Policy and any specific notices lawfully provided to users.

Chapter 2 Our Security Commitments

(I) Lawful Data Processing

The Platform will process and protect user data in accordance with the laws and regulations applicable to the relevant processing activities, including the laws of the Hong Kong Special Administrative Region and other data protection and cybersecurity rules that apply by law due to the user's location, the data recipient's location, or the specific processing activity.

(II) Specific Purposes and Minimum Necessity

The Platform collects and processes user data only to the extent necessary to provide product functions, perform contracts, safeguard network and data security, handle user requests, or fulfill legal obligations. It will not collect information unrelated to the services beyond the disclosed purposes of processing.

If any change to the purpose or method of processing or the type of data requires renewed notice or consent by law, the Platform will complete the corresponding procedures in accordance with the law.

(III) No Sale of User Data

The Platform does not use the sale of users' personal information or business data as a business model and will not lease or trade user data without authorization.

Where permitted by law and necessary, the Platform may provide, share, or transfer necessary data to third parties for the following purposes:

1. **The user's consent or separate consent has been lawfully obtained;**
2. **To complete a third-party model call or another service function actively selected by the user;**
3. **Where necessary to enter into or perform a contract to which the user is a party;**
4. **Where necessary to fulfill legal obligations or statutory duties;**
5. **In response to a lawful request from a competent authority;**
6. **Where necessary to respond to a public health emergency or, in an emergency, to protect the life, health, or property of a natural person;**
7. **Other circumstances prescribed by laws and regulations.**

Where third-party processing is involved, the Platform will adopt necessary notice, contractual controls, security management, and oversight measures according to the actual processing relationship. The specific recipients, processing purposes, data types, and processing methods shall be governed by the Privacy Policy, the list of third-party information, model details pages, or other specific notices.

To enable model calls actively selected by users, relevant requests may be forwarded and processed through model service providers, API technology service providers, model aggregation service providers, cloud computing service providers, or network infrastructure service providers lawfully connected to the Platform.

Depending on the specific service chain, such providers may access user input, uploaded files, conversation context, model parameters, request identifiers, and generated results to the extent necessary to complete the request.

Based on the actual roles of relevant providers in data processing activities, the Platform will lawfully implement necessary provider assessments, contractual controls, access controls, security management, and oversight measures and require them to process relevant data only within the agreed or legally permitted scope. The specific service chain may vary depending on the model, user location, interface method, data recipient location, and supply relationship, and shall be governed by the list of third-party information, model details pages, Privacy Policy, or other specific notices lawfully published by the Platform.

(IV) By Default, the Platform Does Not Use User Content to Train Its Own Models

Unless otherwise provided by laws and regulations or the user's separate and explicit authorization has been lawfully obtained, the Platform will not use user input, uploaded files, AI conversation records, or model-generated content to train general-purpose artificial intelligence models independently developed by the Platform.

If the Platform introduces an optional data sharing, product improvement, or model optimization program in the future, it will lawfully explain the processing purposes, data types, processing methods, and opt-out mechanism and obtain the user's separate consent where required. A user's refusal to participate will not affect the user's use of basic services that do not rely on such processing activities.

When a user selects a third-party model, relevant request data may be transmitted to the corresponding model service provider. Providers may have different policies on data retention, service improvement, and model training. In the absence of support from actual service terms, the Platform will not make a blanket commitment that all third-party models apply zero data retention or never use data for training. The relevant rules shall be governed by information lawfully disclosed by the Platform for the specific model and the service arrangements actually in effect.

Unless genuinely necessary to use a relevant function, users should not submit identity documents, financial accounts, account passwords, API Keys, Access Tokens, precise location data, medical or health information, biometric information, minors' information, trade secrets, or other sensitive or confidential data in model requests. When processing third-party data through an API or by other means, users must ensure that they have a lawful basis for processing and adopt necessary de-identification, access control, and security measures. This provision does not exempt the Platform or relevant providers from their legal obligations regarding data security and personal information protection.

Chapter 3 Data Security Protection Measures

Based on processing activities, data types, system risks, and actual business circumstances, the Platform adopts corresponding data security protection measures, which may include:

1. Protecting data transmission through HTTPS/TLS and similar methods;
2. Implementing identity authentication, access permissions, and authorization management;
3. Maintaining security logs and conducting audits and risk monitoring;
4. Implementing network perimeter protection, vulnerability management, and security remediation measures;
5. Implementing data backup and disaster recovery according to business continuity needs;
6. Applying necessary security requirements during system development and changes;

7. **Conducting risk reviews and security assessments periodically or when material changes occur;**
8. **Other measures required by laws and regulations or appropriate to the level of risk.**

The Platform will continuously improve its security protection capabilities in light of laws and regulations, technological developments, business changes, and risk conditions. The above measures do not constitute a guarantee that no security incident will ever occur, but the Platform will fulfill its reasonable security obligations in accordance with the law.

Chapter 4 Data Access Control

The Platform follows the principles of least privilege and need-based authorization and configures data access permissions according to job responsibilities, data sensitivity, and business needs.

Only personnel who genuinely need access to perform their job responsibilities and have received appropriate authorization may access relevant data, subject to internal policies and confidentiality obligations. Based on actual system and business circumstances, the Platform will adopt measures such as access approval, permission reviews, operation logging, and security audits to identify and address abnormal access.

For personal information, enterprise data, authentication credentials, and other sensitive data, the Platform will apply stricter access restrictions according to the risk level and promptly adjust or revoke permissions that are no longer required.

Chapter 5 Personnel Security and Confidentiality Management

The Platform establishes information security and confidentiality management systems appropriate to its business scale, data processing activities, and security risks.

Employees and collaborators involved in processing user data must receive necessary training on data security and personal information protection according to their job responsibilities and assume corresponding obligations under applicable law, employment relationships, cooperation agreements, or confidentiality arrangements.

Without authorization, relevant personnel must not query, copy, download, disseminate, or disclose user data to third parties. For conduct that violates policies, contracts, or laws, the Platform will, depending on the specific circumstances, revoke permissions, take internal disciplinary action, pursue liability for breach of contract, report to competent authorities, or take other measures available by law.

Chapter 6 Enterprise Customer Data Protection

The Platform understands enterprise customers' need to protect trade secrets, research and development results, source code, business data, and customer information.

For data submitted, uploaded, or processed by enterprise customers while using the Platform, the Platform will process such data according to contractual agreements, applicable law, and the disclosed service purposes and will adopt protection measures appropriate to the risks, including:

(I) Not viewing, copying, downloading, or disseminating enterprise customer data without authorization or using it for purposes unrelated to the services, except where necessary to provide the services, safeguard security, resolve faults, fulfill legal obligations, or as authorized by the enterprise customer;

(II) Not automatically acquiring ownership or intellectual property rights in enterprise customer data, trade secrets, source code, or other content merely by providing Platform services;

(III) Not disclosing enterprise customer data to third parties unless otherwise provided by laws and regulations, authorized by the enterprise customer, or necessary to perform a contract;

(IV) Implementing reasonable logical segregation, permission segregation, or other access control measures based on the business architecture and risk conditions to reduce the risk of unauthorized access between different users;

(V) Taking response and notification measures in accordance with law and contract if a security incident may affect the rights and interests of an enterprise customer.

When processing personal information through the Platform, enterprise customers must independently ensure that they have a lawful basis for processing and must fulfill notice, authorization management, and other legal obligations. The data processing roles, allocation of responsibilities, retention periods, deletion methods, service levels, and other special requirements between the Platform and an enterprise customer may be separately agreed in an enterprise agreement, data processing agreement, or order.

Enterprise customers must properly manage their organization's accounts, API Keys, Access Tokens, and other authentication credentials, reasonably configure internal permissions, and promptly address risks arising from employee departures, role changes, credential leakage, and abnormal calls. Where an incident is caused by the Platform, an enterprise customer, or a third party, the responsible party shall bear corresponding liability in accordance with law and contract.

Chapter 7 Data Retention, Deletion, and Account Cancellation

The Platform will retain user data for the shortest period necessary to achieve the processing purposes. Where laws and regulations prescribe a retention period, or retention is necessary to perform a contract, handle a dispute, or safeguard security, the data will be processed for the corresponding period and purpose. Specific retention rules shall be governed by the Privacy Policy, product function descriptions, or specific agreements.

Users have the right to request deletion of personal information or cancellation of their Platform accounts in accordance with the Privacy Policy and applicable law. The Platform will process such requests lawfully after completing necessary identity verification.

Before canceling an account, users must handle outstanding orders, paid balances, and other related rights and interests in accordance with the Recharge Service Agreement and the on-page process. Account cancellation itself does not automatically create a right to withdraw a balance, nor does it provide a basis for the Platform to confiscate an unused paid balance.

After an account is canceled, the Platform will delete or anonymize relevant personal information in accordance with the law. Data that must be retained by law, including transaction records, financial vouchers, security logs, and other legally retained information, will continue to be retained for the corresponding period, and its use will be limited to lawful purposes such as fulfilling legal obligations, safeguarding security, preventing risks, or resolving disputes.

If a user actively deletes AI history, uploaded files, or other business data through product functions, the Platform will process the deletion according to the function description and applicable law. If data cannot immediately be deleted from all copies due to backup rotation, disaster recovery, system technical limitations, or statutory retention obligations, the Platform will restrict processing and apply security protection measures to the relevant data and will process it lawfully after backups are updated, recovery conditions are satisfied, or the retention period expires.

Chapter 8 Security Incident Response

The Platform establishes information security incident monitoring, reporting, and emergency response mechanisms appropriate to its business and risk conditions.

If a data leakage, alteration, loss, or other security incident occurs or may occur, the Platform will immediately take remedial measures, control risks, preserve necessary records, conduct an investigation, and minimize the impact of the incident to the extent possible.

When the notification conditions under applicable law are met, the Platform will notify affected users promptly in accordance with the law. The notice may include:

(I) The types of data involved, the cause of the incident, and the possible harm;

(II) Remedial measures taken or proposed by the Platform;

(III) Risk-prevention measures users may take;

(IV) The Platform's contact details and follow-up arrangements.

Where measures taken by the Platform can effectively prevent harm caused by information leakage, alteration, or loss, whether individuals must be notified shall be determined under applicable law. If a regulatory authority considers that harm may be caused, the Platform will provide notice as required.

Where a report to a relevant competent authority is required by law, the Platform will fulfill the corresponding reporting obligation.

Where a data security incident results from a model service provider's, API technology service provider's, model aggregation service provider's, cloud computing service provider's, or network infrastructure service provider's own unlawful conduct, breach of contract, processing of data beyond the authorized scope, deficiencies in security measures, or other causes beyond the Platform's reasonable control, the party actually responsible shall bear corresponding liability in accordance with the law.

The Platform will take necessary emergency response, user notification, investigation assistance, and risk mitigation measures within the scope prescribed by law and its own responsibilities. Where the Platform has fulfilled its obligations of reasonable selection, contractual control, supervision, management, and security protection, and the relevant harm was not caused by the Platform's willful misconduct, gross negligence, or breach of statutory duties, the Platform shall bear liability, to the extent permitted by law, according to its degree of fault and the actual causal relationship.

If the Platform first assumes compensation, remediation, or other liability due to an upstream provider's unlawful conduct, breach of contract, or security incident, the Platform has the right to seek recovery from the responsible party in accordance with law and contract.

Chapter 9 Cross-Border Data Protection

The Platform will lawfully handle cross-border data transfers based on the actual model, call method, data type, user location, data recipient location, and applicable law. Use of an overseas model or service provider does not necessarily mean that all data will be transferred across borders; actual processing shall be governed by the specific service chain and information lawfully disclosed by the Platform.

If a specific model, function, or service chain involves a cross-border transfer of personal information or other protected data, before implementing the transfer the Platform will lawfully complete necessary notice, consent, assessment, contractual arrangements, security measures, or other compliance procedures and provide necessary information through the Privacy Policy, list of third-party information, model details pages, or specific notices.

For data processing involving third-party model service providers, API technology service providers, model aggregation service providers, cloud computing service providers, or network infrastructure service providers, the Platform will fulfill necessary selection, contractual control, notice, security management, and oversight obligations based on the actual cooperation relationship. Where a third party acts as an independent processor or data controller, its processing may also be subject to third-party rules lawfully disclosed to users, but this does not exempt the Platform from its own legal responsibilities.

Chapter 10 Continuous Improvement, Oversight, and Contact

Data security is an ongoing undertaking. The Platform will continuously improve its information security management systems and protection measures in light of changes in laws and regulations, regulatory requirements, technological developments, business needs, and security risks.

The Platform welcomes comments and suggestions from users, partners, and the public regarding its data security work. The Platform will accept data security questions or complaints through its published customer service channels, privacy contact channels, or other appropriate means and will review and handle them according to their nature.

Specific contact channels shall be governed by the Privacy Policy or the latest information published by the Platform. Before formal publication, the Platform must ensure that users can submit requests concerning data security and personal information protection through clear and effective channels.

Chapter 11 Supplementary Provisions

If this Commitment conflicts with applicable laws or regulations, the applicable laws and regulations shall prevail. If this Commitment is inconsistent with the Privacy Policy on a specific matter concerning personal information processing, the specific notice or Privacy Policy that is legally effective and expressly governs that matter shall prevail. If any provision of this Commitment is held invalid, revoked, or unenforceable, the validity of the remaining provisions will not be affected.

The Platform may revise this Commitment in response to laws and regulations, regulatory requirements, business development, technological changes, or security risks. If a revision involves a material change to users' rights and interests, the Platform will provide notice through the official website, in-platform notifications, email, or other reasonable means in accordance with the law and give users a reasonable opportunity to become informed. Updated content will take effect on the date specified in the announcement or notice, unless otherwise provided by laws and regulations.

The formation, effectiveness, performance, interpretation, and dispute resolution of this Commitment shall be governed by the laws of the Hong Kong Special Administrative Region. Any dispute arising out of or in connection with this Commitment shall first be resolved through amicable consultation between the parties. If consultation fails, either party may commence proceedings before a court of competent jurisdiction in the Hong Kong Special Administrative Region.